REGINALD THABO MTHOMBENI

Versus

BRIDGEBAUGH (PVT) LTD

And

MATAKA LEGAL PRACTICE

And

GREGORY NYAMUPANEDENGU

And

PIONEERING HEALTH GROUP PARTNERSHIP

And

REGISTRAR OF DEEDS

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 24 September 2025 & 13 April 2026

Special plea

R. T. Mutero for the plaintiff
J. Makanda for the 1st defendant
Ms. *P. Nare* for the 2nd and 3rd defendants
Ms. *O. Chisvo* for the 4th defendant

DUBE-BANDA J:

[1] This is a special plea. The plaintiff sued out a summons seeking cancellation, in terms of s 8 of the Deeds Registries Act [*Chapter 20:05*], of the deed of transfer number DT 3644/24 registered in the name of the fourth defendant and the revival of the deed of transfer number 1932/24. In addition, the plaintiff sought the setting aside of the sale agreement dated 15 July 2024 between the first defendant and the fourth defendant, and a declaration that the contract dated 1 June 2024 between the plaintiff and the first defendant in respect of stand 4436

Salisbury Township of Salisbury Lands, measuring 2379 square meters held under deed of transfer number 2309/82 ("the property") is valid and binding.

[2] In the declaration, the plaintiff contends that on 1 June 2024, he entered into an agreement of sale with the first defendant in respect of the property. The purchase was USD$ 310,000, 00 and was to be payable in installments. The first defendant was to give vacant possession or occupation on the payment of the deposit, and the conveyancing was to be done by Mataka Legal Practice, the second defendant. The plaintiff contends that he has paid a deposit of USD$40,000.00 and USD$155,000.00. He avers that the agreement has not been cancelled and remains extant and binding. It is alleged that the first defendant has refused to give the plaintiff vacant possession and refused to accept further instalments. In addition, the plaintiff contends that the first defendant has sold and transferred the property to the fourth defendant.

[3] The second, third and fourth defendants pleaded to the summons, and they did not participate in this special plea. On 13 January 2025, the plaintiff caused to be issued a notice to plead against the first defendant. On 16 January 2025, the first defendant filed a plea in bar. The first defendant contends that the dispute between itself and the plaintiff, in terms of the parties' agreement, is resolvable in terms of the Arbitration Act [*Chapter 7:15*], at the Commercial Arbitration Centre. In addition, it was contended that this court has no jurisdiction on this matter. The first defendant sought that this matter be struck off the roll or be dismissed with costs on a legal practitioner and client scale.

[4] The plaintiff raised two preliminary objections, *viz*, (a) that the special plea is fatally defective in that it was filed before a plea on the merits was filed; (b) that once the plaintiff had filed and served a notice to plead, the first defendant had lost the right to file a special plea.

[5] I now turn to the preliminary objection that the special plea is fatally defective. It was argued that before a litigant file a special plea of arbitration, it must show that there is an arbitrable dispute which falls into the ambit of the arbitration clause in the agreement. The dispute must appear *ex facie* the record. It was submitted further that it is only a plea on the merits that can show the existence of a dispute. It was further submitted that the failure to file a plea on the merits renders this special plea fatally defective and must be struck off the roll with costs.

[6] The first defendant submitted that the cases cited by the plaintiff in support of his preliminary objection were dealt with before the promulgation of the High Court Rules, 2021. It was submitted further that the current rules allow a defendant to file a special plea as an alternative to a plea on the merits. It was further argued that the second, third, and fourth defendants have filed their pleas on the merits, thus confirming the existence of the dispute. The first defendant argued that the preliminary objection has no merits and ought to be dismissed.

[7] In *Cargill Zimbabwe* v *Culvenham Trading (Pvt) Ltd* 2006 (1) ZLR 381 (H) at 382 F-G MAKARAU J (as she then was) had this to say on the point:-

> "For a court to stay its proceedings and refer the matter to arbitration, there must be a dispute between the parties apparent *ex facie* the pleadings. This appears to me to be a settled position of our law. See *PTA Bank* v *Elanne (Pvt) Ltd & Others* 2000 (1) ZLR 156 (H) and *Zimbabwe Broadcasting Corporation* v *Flame Lily Broadcasting (Pvt) Ltd t/a Joy TV* 1999 (2) ZLR 448 (H)."

At page 383D-F, the learned judge alluded to the manner in which a dispute must be raised and concluded thus: -

> "In my view, a dispute between the parties can only arise *ex facie* the pleadings filed with the court. It cannot be assumed or presumed from the mere fact of the entry of an appearance to defend. It is my further view that the dispute cannot be brought to the attention of the court in the heads of argument, for counsel cannot plead on behalf of the parties. It is trite that heads of argument are counsel's conclusions and opinion of the facts and law applicable to the facts of the matter. They are not part of the pleadings.
>
> From the above, it appears to me that before raising a special plea staying proceedings in this court and referring the matter to arbitration, the defendant must file a plea as to the merits of the matter for the dispute between the parties to arise *ex facie* the pleadings. It further appears to me that any practice short of this will result in the special plea being dismissed as having been prematurely filed."

See *Zimbabwe Tobacco Growing Company (Pvt) Ltd t/a Northern Tobacco* v *George Maniwa* HH227-15.

[8] The record in this matter shows the following: on 22 November 2024, the first defendant filed a notice of appearance to defend; on 10 December 2024 it filed a request for further particulars; on 20 December 2024 the plaintiff filed further particulars; on 13 January 2025 the plaintiff filed a notice to plea against the first defendant; and on 16 January 2025 the first defendant filed a plea in bar and heads of argument.

[9] The jurisprudence in this jurisdiction is that before raising a special plea, seeking to stay proceedings in this court and referring the matter to arbitration, the defendant must file a plea as to the merits of the matter for the dispute between the parties to appear ex *facie* the pleadings. In *casu*, the first defendant has not filed a plea on the merits. By failing to file a plea on the merits, the first defendant has not shown that there is an arbitrable dispute as contemplated in the agreement between the parties. In fact, without a plea on the merits, the matter will not be ripe for a special plea of arbitration. In the circumstances, the special plea is fatally defective in that it was prematurely filed.

[10] The argument that the cases relied upon by the plaintiff were dealt with before the promulgation of the High Court Rules, 2021, is not persuasive. I say so because it appears to me that r 42 of the High Court Rules, 2021 does not change the import of Order 21 r 138 and r 139 of the High Court Rules, 1971, but merely elaborates and provides procedural detail. Further, the rules deal with the procedure, while the above cases deal with issues of substance, i.e., what a litigant must show before a matter may be referred to arbitration. According to the cases, a litigant must show that there is an arbitrable dispute before a matter may be referred to arbitration. An arbitrable dispute can only be shown to exists by filing a plea on the merits. Therefore, the argument that I should not follow the following cases: *Cargill Zimbabwe* v *Culvenham Trading (Pvt) Ltd* 2006 (1) ZLR 381 (H) at 382 F-G; *Broadcasting Corporation* v *Flame Lily Broadcasting (Pvt) Ltd t/a Joy TV* 1999 (2) ZLR 448 (H); *Zimbabwe Tobacco Growing Company (Pvt) Ltd t/a Northern Tobacco* v *George Maniwa* HH227-15 is ill-conceived.

[11] In addition, the argument that the dispute appears from the pleas to the merits filed by the second, third, and fourth defendants is not available to the first defendant. This is so because the dispute that must appear *ex facie* the record is the one between the plaintiff and the first defendant. Not between the plaintiff and the other defendants in this litigation. It is inconsequential in respect of the first defendant that the other defendants have pleaded to the merits of the matter. To defeat this preliminary objection, it is the first defendant that must plead to the merits of the matter. It has not done so. It is for the above reasons that the preliminary objection that the special plea is fatally defective has merit and must succeed.

[12] Because of the decision I have reached regarding the first preliminary objection, no useful purpose will be served by dealing with the objection that a special plea cannot be filed in answer to a notice to plead.

[13] There remains to be considered the question of costs. No good grounds exist for a departure from the general rule that costs follow the cause. The plaintiff is clearly entitled to his costs.

In the result, it is ordered as follows:

i. The preliminary objection that the special plea is fatally defective is upheld.
ii. The special plea is struck off the roll with costs.

Lunga Mazikana Attorneys, plaintiff's legal practitioners
Kantor and Immerman, 1st defendant's legal practitioners
Mataka Legal Practice, 2nd and 3rd defendants' legal practitioners
Scanlen & Holderness, 4th defendants' legal practitioners